



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2781: decommissioning; solar energy; standards; fund

CARTER N FLOOR AMENDMENT

1. Exempts solar energy power plants if the municipality or county where the plant is located has:
 - a. adopted local decommissioning and site restoration standards; or
 - b. approved a decommissioning plan for a facility before the commencement of the facility's operation.
2. Exempts a distributed energy generation system or a solar energy power plant that, before the effective date of this legislation:
 - a. was constructed or installed or in operation;
 - b. has submitted or received a permit from a city, town or county;
 - c. has advanced to the facilities study stage of an interconnection process.
3. Removes a reimbursement requirement of a solar energy power plant owner or operator in the event of a transfer of unit ownership.
4. Excludes the initial construction from the nonfunctional or inoperative time a solar energy power plant may exist prior to its removal.
5. Expands the conditions of the site's reclamation from *restoration*, to *repowering or restoration*.
6. Outlines criteria of a qualified individual who is eligible to estimate the costs of decommissioning the solar power plant.
7. Expands contents in the decommissioning and site restoration plan to include a timeline for the decommissioning and restoration or repowering of the site.
8. Allows a solar energy power plant owner to petition a permitting county to amend a decommissioning plan.
9. Requires a permitting county allow a solar energy power plant owner to amend the decommissioning plan to account for certain listed items.
10. Modifies requirements of the:
 - a. removal of a solar energy power plant; and
 - b. restoration of each site.
11. Expands eligible methods of financial assurance for a solar energy power plant owner or operator to include an irrevocable letter of credit.

12. Establishes a schedule regarding the financial assurance an owner or operator of a solar energy power plant must provide.
13. Reduces from *every 10 years* to *every 5 years*, the frequency the plant owner or operator must update the cost estimate of equipment value for the decommissioning of the site.
14. Clarifies that a solar energy power plant owner or operator is not required to provide duplicative financial assurance for the decommissioning and site restoration.
15. Requires, in the event of ownership transfer, the successor owner or operator post financial assurance in an amount and form equal to the previously held assurance.
16. Requires the liability insurance required by this legislation that is held by a solar energy power plant owner or operator to have a limit of \$1,000,000 per occurrence and \$2,000,000 per aggregate.
17. Removes the applicability section.
18. Makes technical and conforming changes.

ADDITIONAL COW
CARTER N FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2781
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 30, Arizona Revised Statutes, is amended by adding
3 chapter 9, to read:

4 CHAPTER 9

5 SOLAR ENERGY POWER PLANTS

6 ARTICLE 1. GENERAL PROVISIONS

7 30-1101. Local government: requirements: procedures:
8 applicability

9 A. A CITY, TOWN OR COUNTY MAY ADOPT DECOMMISSIONING STANDARDS FOR A
10 SOLAR ENERGY POWER PLANT THAT IS LOCATED IN THE CITY, TOWN OR COUNTY.

11 B. AN APPLICANT FOR A SOLAR ENERGY POWER PLANT SHALL COMPLY WITH
12 THE REQUIREMENTS OR PROCEDURES FOR A SOLAR ENERGY POWER PLANT THAT ARE
13 ADOPTED BY THE CITY, TOWN OR COUNTY IN WHICH THE SOLAR ENERGY POWER PLANT
14 IS TO BE LOCATED.

15 [C. THIS CHAPTER DOES NOT APPLY TO A SOLAR ENERGY POWER PLANT IF
16 THE CITY, TOWN OR COUNTY IN WHICH THE SOLAR ENERGY POWER PLANT IS LOCATED
17 HAS ADOPTED A LOCAL DECOMMISSIONING AND SITE RESTORATION STANDARD OR HAS
18 APPROVED A DECOMMISSIONING PLAN FOR A FACILITY BEFORE THE COMMENCEMENT OF
19 THE SOLAR ENERGY POWER PLANT'S OPERATION.]

20 D. THIS CHAPTER DOES NOT APPLY TO A DISTRIBUTED ENERGY GENERATION
21 SYSTEM OR A SOLAR ENERGY POWER PLANT THAT BEFORE THE EFFECTIVE DATE OF
22 THIS SECTION:

23 1. WAS CONSTRUCTED OR INSTALLED OR IN OPERATION.

24 2. HAS SUBMITTED OR RECEIVED A PERMIT FROM A CITY, TOWN OR COUNTY.

25 3. HAS ADVANCED TO THE FACILITIES STUDY STAGE OF AN INTERCONNECTION
26 PROCESS.]

1 30-1102. Transfer or sale

2 A. THE TRANSFER OF A SOLAR ENERGY POWER PLANT OR SPECIAL USE PERMIT
3 OR THE SALE OF THE ENTITY OWNING THE SOLAR ENERGY POWER PLANT MAY NOT
4 OCCUR WITHOUT WRITTEN ACCEPTANCE BY THE TRANSFEREE OF THE TRANSFEROR'S
5 OBLIGATIONS UNDER THIS CHAPTER. A TRANSFER OR SALE DOES NOT ELIMINATE THE
6 LIABILITY OR RESPONSIBILITY OF AN APPLICANT OR OF ANY OTHER PARTY UNDER
7 THIS CHAPTER FOR ACTS OR OMISSIONS OCCURRING BEFORE THE TRANSFER OR SALE.

8 B. FOR A TRANSFER OF UNIT OWNERSHIP, THE CITY, TOWN OR COUNTY MAY
9 ~~[REASSESS]~~ [ASSESS] THE AMOUNT OF ANY FINANCIAL ASSURANCE REQUIRED UNDER
10 SECTION 30-1105 ~~[AND THE SOLAR ENERGY POWER PLANT PROJECT OWNER OR~~
11 ~~OPERATOR SHALL REIMBURSE ANY REASONABLE COSTS INCURRED BY THE CITY, TOWN~~
12 ~~OR COUNTY TO OBTAIN THE REASSESSMENT]~~.

13 30-1103. Curing damaged or deficient plant; restoring
14 nonfunctional or inoperative plant

15 A. IF A PART OF A SOLAR ENERGY POWER PLANT IS DAMAGED OR IF A SOLAR
16 ENERGY POWER PLANT VIOLATES A PERMIT CONDITION IMPOSED BY A CITY, TOWN OR
17 COUNTY, THE SOLAR ENERGY POWER PLANT OWNER OR OPERATOR SHALL CURE ANY
18 DAMAGE OR DEFICIENCY WITHIN NINETY DAYS AFTER WRITTEN NOTICE FROM THE
19 CITY, TOWN OR COUNTY. IF IT IS NOT REASONABLY POSSIBLE FOR THE SOLAR
20 ENERGY POWER PLANT OWNER OR OPERATOR TO CURE THE DAMAGE OR DEFICIENCY
21 WITHIN NINETY DAYS AFTER RECEIVING THE WRITTEN NOTICE, THE SOLAR ENERGY
22 POWER PLANT OWNER OR OPERATOR SHALL PROVIDE THE CITY, TOWN OR COUNTY WITH
23 A PLAN TO CURE THE DAMAGE OR DEFICIENCY AS SOON AS REASONABLY POSSIBLE.

24 B. IF A SOLAR ENERGY POWER PLANT REMAINS NONFUNCTIONAL OR
25 INOPERATIVE FOR A CONTINUOUS PERIOD OF AT LEAST ONE YEAR~~[, EXCLUDING THE~~
26 ~~INITIAL CONSTRUCTION]~~, THE APPLICANT OR ITS SUCCESSORS OR ASSIGNS, WITHOUT
27 ANY FURTHER ACTION BY THE CITY, TOWN OR COUNTY, SHALL REMOVE THE SYSTEM
28 AND RESTORE THE SITE AT ITS OWN EXPENSE AS PRESCRIBED IN SECTION 30-1104.
29 IF IT IS NOT REASONABLY POSSIBLE FOR A SOLAR ENERGY POWER PLANT OWNER OR
30 OPERATOR TO [REPOWER OR] RESTORE THE SOLAR ENERGY POWER PLANT TO BE
31 FUNCTIONAL OR OPERATIONAL WITHIN ONE YEAR, THE SOLAR ENERGY POWER PLANT
32 OWNER OR OPERATOR SHALL PROVIDE THE CITY, TOWN OR COUNTY WITH A PLAN TO
33 RESTORE THE SOLAR ENERGY POWER PLANT TO BE FUNCTIONAL OR OPERATIONAL AS
34 SOON AS REASONABLY POSSIBLE.

35 30-1104. Decommissioning and site restoration

36 A. A SOLAR ENERGY POWER PLANT OWNER OR OPERATOR SHALL PROVIDE A
37 CITY, TOWN OR COUNTY WHERE THE SOLAR ENERGY POWER PLANT IS LOCATED WITH A
38 DECOMMISSIONING AND SITE RESTORATION PLAN.

39 B. THE DECOMMISSIONING AND SITE RESTORATION PLAN SHALL STATE HOW
40 THE SOLAR ENERGY POWER PLANT WILL BE DECOMMISSIONED AND THE SITE WILL BE
41 [REPOWERED OR] RESTORED AND SHALL INCLUDE ALL OF THE FOLLOWING:

42 1. AN ESTIMATE OF THE COST OF DECOMMISSIONING [THE SOLAR ENERGY
43 POWER PLANT] AND [RESTORATION] [REPOWERING OR RESTORING THE SITE], NET OF
44 SALVAGE VALUE. ~~[A PERSON]~~ [AN INDIVIDUAL] WHO IS QUALIFIED TO ESTIMATE
45 DECOMMISSIONING AND SITE RESTORATION [OR REPOWERING] COSTS AND SALVAGE
46 VALUE FOR THE SOLAR ENERGY POWER PLANT SHALL MAKE THE ESTIMATE. [AN

1 INDIVIDUAL IS QUALIFIED TO CONDUCT THE ESTIMATE PURSUANT TO THIS PARAGRAPH
2 IF THE INDIVIDUAL:

3 (a) IS A REGISTERED PROFESSIONAL ENGINEER WHO IS INDEPENDENT FROM
4 THE SOLAR ENERGY POWER PLANT OWNER AND THE CITY, TOWN OR COUNTY.

5 (b) AS AGREED TO BY THE SOLAR ENERGY POWER PLANT OWNER AND THE
6 CITY, TOWN OR COUNTY, HAS OTHER EXPERIENCE IN DECOMMISSIONING SOLAR ENERGY
7 POWER PLANTS OF THE TYPE IN QUESTION AND THAT EXPERIENCE IS SUITABLE TO
8 THE SOLAR ENERGY POWER PLANT OWNER AND THE CITY, TOWN OR COUNTY.]

9 2. THE FINANCIAL RESOURCES THAT THE SOLAR ENERGY POWER PLANT WILL
10 USE TO ACCOMPLISH DECOMMISSIONING AND RESTORATION.

11 ~~[3. FINANCIAL ASSURANCES THAT COMPLY WITH SECTION 30-1105.]~~

12 [3. A TIMELINE FOR THE DECOMMISSIONING AND THE SITE RESTORATION OR
13 REPOWERING.]

14 C. A SOLAR ENERGY POWER PLANT OWNER OR OPERATOR SHALL REMOVE A
15 SOLAR ENERGY POWER PLANT AND RESTORE A SOLAR ENERGY POWER PLANT SITE AS
16 PRESCRIBED IN THIS SECTION UNLESS ~~[THE LANDOWNER OR]~~ A CITY, TOWN OR
17 COUNTY DETERMINES THAT A PROVISION OF THIS SECTION RELATING TO RESTORATION
18 IS NOT NECESSARY.

19 [D. A SOLAR ENERGY POWER PLANT OWNER MAY PETITION A PERMITTING
20 COUNTY TO AMEND A DECOMMISSIONING PLAN. A COUNTY SHALL ALLOW A SOLAR
21 ENERGY POWER PLANT OWNER TO AMEND A DECOMMISSIONING PLAN AS NECESSARY TO
22 ACCOUNT FOR ANY OF THE FOLLOWING:

23 1. ADVANCEMENTS IN AVAILABLE TECHNOLOGY.

24 2. ADVANCEMENTS IN DECOMMISSIONING, SALVAGING OR REPOWERING
25 PROCESSES OR PROCEDURES.

26 3. THE BEST INTEREST OF THE CITY, TOWN OR COUNTY, THE LANDOWNER OR
27 THE SOLAR ENERGY POWER PLANT OWNER.]

28 ~~[D.]~~ [E.] THE REMOVAL OF A SOLAR ENERGY POWER PLANT SHALL:

29 1. INCLUDE ALL ABOVE GROUND COMPONENTS, INCLUDING SOLAR ARRAYS,
30 TRANSFORMERS, ~~[BATTERY ENERGY STORAGE SYSTEMS,]~~ ABOVE GROUND COLLECTION
31 CABLES AND POLES AND FENCING.

32 2. COMPLY WITH THE FOLLOWING:

33 (a) FOUNDATIONS AND BURIED PROJECT COMPONENTS, OTHER THAN BURIED
34 COLLECTION LINES, MUST BE REMOVED TO A DEPTH OF AT LEAST THIRTY-SIX INCHES
35 OR AS PRESCRIBED BY THE CITY, TOWN OR COUNTY ~~[OR AS NEGOTIATED WITH THE~~
36 ~~LANDOWNER].~~

37 (b) BURIED COLLECTION LINES MUST BE REMOVED TO A DEPTH OF ~~[AT~~
38 ~~LEAST]~~ THIRTY-SIX INCHES. COLLECTION LINES BELOW A DEPTH OF THIRTY-SIX
39 INCHES MAY REMAIN IN PLACE ~~[UNLESS OTHERWISE PRESCRIBED BY THE CITY, TOWN~~
40 ~~OR COUNTY].~~

41 (c) REMOVAL ACTIVITIES MUST BE COMPLETED ~~[WITHIN EIGHTEEN MONTHS~~
42 ~~AFTER DECOMMISSIONING INITIATION UNLESS OTHERWISE APPROVED BY THE CITY,~~
43 ~~TOWN OR COUNTY] [IN ACCORDANCE WITH THE TIMELINE IN THE DECOMMISSIONING~~
44 ~~PLAN].~~

45 ~~[F.]~~ [F.] THE RESTORATION OF EACH SITE SHALL INCLUDE:

46 1. MINIMIZING GROUND DISTURBANCE AND ~~[RESTORING THE SITE]~~ [USING
47 COMMERCIALLY REASONABLE EFFORTS TO RESTORE THE SITE] TO ITS ORIGINAL

1 GROUND CONTOURS, IF POSSIBLE, OR COORDINATING WITH THE LANDOWNER TO
2 RESTORE THE SITE.

3 2. REASONABLY RESTORING AND REESTABLISHING DISTURBED ON-SITE SOILS
4 AND VEGETATION BY USING NATIVE SEED MIX AND PROPER SOIL NUTRIENTS,
5 INCLUDING FERTILIZER AND LIME, IF NECESSARY, TO PROVIDE AND SUSTAIN GROWTH
6 OR IN COORDINATION WITH THE LANDOWNER TO ALLOW DESIRED VEGETATION TO BE
7 PLANTED OR RETURNING THE ON-SITE SOILS AND VEGETATION TO THEIR ORIGINAL
8 CONDITIONS.

9 ~~[3. ADEQUATELY RESTORING PAVED ROADS TO THEIR ORIGINAL CONDITION~~
10 ~~FOLLOWING DECOMMISSIONING ACTIVITIES OR LEAVING IMPROVEMENTS IN PLACE WITH~~
11 ~~THE LANDOWNER'S CONSENT.]~~

12 [3. AFTER THE DECOMMISSIONING OF THE SITE IS COMPLETE:

13 (a) RESTORING PAVED ROADS THAT EXISTED BEFORE THE PROJECT WAS
14 CONSTRUCTED TO THE ORIGINAL CONDITION OF THE PAVED ROADS.

15 (b) LEAVING ROADS OR OTHER IMPROVEMENTS IN PLACE WITH THE
16 LANDOWNER'S CONSENT.]

17 4. ALLOWING ACCESS ROADS, FENCING, ASSOCIATED DRAINAGE IMPROVEMENTS
18 AND ANY OTHER RESIDUAL MINOR IMPROVEMENTS TO REMAIN WITH THE LANDOWNER'S
19 WRITTEN CONSENT.

20 5. REMOVING AND REMEDIATING ANY HAZARDOUS MATERIALS AND WASTE.

21 ~~[F.]~~ [G.] AFTER PROVIDING REASONABLE NOTICE TO THE PROPERTY OWNER
22 [AND PROJECT OWNER], THE CITY, TOWN OR COUNTY MAY ENTER THE SITE TO EFFECT
23 OR COMPLETE DECOMMISSIONING PURSUANT TO THE DECOMMISSIONING PLAN.

24 ~~[G.]~~ [H.] AFTER THE SOLAR ENERGY POWER PLANT OWNER OR OPERATOR
25 COMPLETES THE DECOMMISSIONING OF A SOLAR ENERGY POWER PLANT AND
26 RESTORATION OF THE SOLAR ENERGY POWER PLANT SITE:

27 1. THE SOLAR ENERGY POWER PLANT OWNER OR OPERATOR SHALL NOTIFY THE
28 CITY, TOWN OR COUNTY WITHIN THIRTY DAYS AFTER THE DATE ON WHICH THE OWNER
29 OR OPERATOR COMPLETES DECOMMISSIONING AND RESTORATION.

30 2. THE CITY, TOWN OR COUNTY SHALL CERTIFY TO THE SOLAR ENERGY POWER
31 PLANT OWNER OR OPERATOR THAT DECOMMISSIONING AND RESTORATION IS COMPLETE
32 WITHIN THIRTY DAYS AFTER THE DATE ON WHICH THE CITY, TOWN OR COUNTY
33 RECEIVES NOTICE FROM THE SOLAR ENERGY POWER PLANT OWNER OR OPERATOR.

34 ~~[H.]~~ [I.] AFTER THE CITY, TOWN OR COUNTY CERTIFIES THAT
35 DECOMMISSIONING AND RESTORATION IS COMPLETE:

36 1. THE SOLAR ENERGY POWER PLANT OWNER OR OPERATOR IS RELEASED FROM
37 ANY OBLIGATION PRESCRIBED IN THIS CHAPTER.

38 2. THE CITY, TOWN OR COUNTY SHALL RETURN OR RELEASE ANY REMAINING
39 FINANCIAL ASSURANCE REQUIRED UNDER SECTION 30-1105.

40 30-1105. Financial assurance

41 A. ~~[BEGINNING ON A DATE DETERMINED BY THE CITY, TOWN OR COUNTY~~
42 ~~WHERE A SOLAR ENERGY POWER PLANT IS LOCATED]~~ [IN ACCORDANCE WITH THE
43 FOLLOWING SCHEDULE], A SOLAR ENERGY POWER PLANT OWNER OR OPERATOR SHALL
44 ~~[CONTINUOUSLY]~~ MAINTAIN FINANCIAL ASSURANCE, INCLUDING IN THE FORM OF A
45 BOND~~[.]~~ ~~[OR]~~ PARENT GUARANTEE [OR IRREVOCABLE LETTER OF CREDIT], IN AN
46 AMOUNT EQUAL TO THE COST TO DECOMMISSION THE SOLAR ENERGY POWER PLANT AND
47 RESTORE THE SOLAR ENERGY POWER PLANT SITE AS PRESCRIBED IN SECTION

1 30-1104, NET SALVAGE VALUE[.] [~~AS DETERMINED BY THE CITY, TOWN OR COUNTY~~
2 ~~WHERE THE SOLAR ENERGY POWER PLANT IS LOCATED.~~]

3 [1. AN INITIAL POSTING BY THE CURRENT OWNER OR OPERATOR ON OR
4 BEFORE TEN YEARS AFTER THE COMMERCIAL OPERATION DATE OF THE SOLAR ENERGY
5 POWER PLANT AND NOT MORE THAN TWENTY-FIVE PERCENT OF THE ENTIRE
6 DECOMMISSIONING COST CALCULATED UNDER SECTION 30-1104.

7 2. INTERMEDIARY POSTINGS OCCURRING NOT LESS FREQUENTLY THAN ONE
8 POSTING EVERY FIVE YEARS AFTER THE DATE OF THE INITIAL POSTING.

9 3. A FINAL POSTING ON OR BEFORE TWENTY-FIVE YEARS AFTER THE
10 COMMERCIAL OPERATION DATE OF THE SOLAR ENERGY POWER PLANT, SUCH THAT THE
11 TOTAL AMOUNT POSTED IS EQUAL TO THE ENTIRE DECOMMISSIONING COST CALCULATED
12 UNDER SECTION 30-1104.

13 B.] THE SOLAR ENERGY POWER PLANT OWNER OR OPERATOR SHALL UPDATE THE
14 COST ESTIMATE EVERY ~~TEN~~ [FIVE] YEARS TO ENSURE AN ACCURATE ESTIMATION OF
15 COSTS ASSOCIATED WITH DECOMMISSIONING, EQUIPMENT VALUE AND SITE
16 RESTORATION, ADJUSTED FOR INFLATION.

17 ~~B.] [C. A SOLAR ENERGY POWER PLANT OWNER OR OPERATOR IS NOT~~
18 REQUIRED TO PROVIDE DUPLICATIVE FINANCIAL ASSURANCE FOR DECOMMISSIONING
19 AND SITE RESTORATION. IF THE OWNER OR OPERATOR HAS PROVIDED FINANCIAL
20 ASSURANCE FOR DECOMMISSIONING AND SITE RESTORATION PURSUANT TO A LEASE
21 AGREEMENT WITH A LANDOWNER OR IN AGREEMENT WITH ANOTHER STATE OR FEDERAL
22 AGENCY OR A CITY, TOWN OR COUNTY, THE OWNER OR OPERATOR IS EXEMPT FROM THE
23 FINANCIAL ASSURANCE REQUIREMENTS AS PRESCRIBED IN THIS SECTION TO THE
24 EXTENT THAT THE ASSURANCE COVERS ESTIMATED COSTS THAT ARE CALCULATED UNDER
25 SECTION 30-1104.

26 D.] THE CITY, TOWN OR COUNTY SHALL DEPOSIT ANY MONIES THAT ARE
27 COLLECTED FROM A SOLAR ENERGY POWER PLANT IN THE SOLAR ENERGY POWER PLANT
28 SITE REMEDIATION FUND ESTABLISHED BY SECTION 30-1107. A CITY, TOWN OR
29 COUNTY MAY USE THE MONIES DEPOSITED IN THE SOLAR ENERGY POWER PLANT SITE
30 REMEDATION FUND FOR THE COSTS ASSOCIATED WITH DECOMMISSIONING AND
31 REMEDICATION OF A SOLAR ENERGY POWER PLANT SITE.

32 ~~C.] [E.] IF A SOLAR ENERGY POWER PLANT OWNER SELLS THE SOLAR~~
33 ENERGY POWER PLANT TO A PUBLIC SERVICE CORPORATION ~~[THAT IS REGULATED BY~~
34 ~~THE CORPORATION COMMISSION]~~[. UTILITY OR ANOTHER SOLAR ENERGY POWER PLANT
35 OWNER], THE SOLAR ENERGY POWER PLANT OWNER SHALL PROVIDE A NOTICE OF THE
36 SALE TO THE CITY, TOWN OR COUNTY. WITHIN FIFTEEN DAYS AFTER RECEIVING THE
37 NOTICE, THE CITY, TOWN OR COUNTY SHALL WAIVE THE REQUIREMENTS OF THIS
38 SECTION AND RETURN OR RELEASE ANY FINANCIAL ASSURANCE PROVIDED TO THE
39 CITY, TOWN OR COUNTY TO THE SOLAR ENERGY POWER PLANT OWNER. [AFTER A
40 TRANSFER OF OWNERSHIP, THE SUCCESSOR OWNER OR OPERATOR, AS A CONDITION OF
41 THE TRANSFER, SHALL POST FINANCIAL ASSURANCE THAT IS IN AN AMOUNT AND FORM
42 AT LEAST EQUAL TO THE FINANCIAL ASSURANCE CURRENTLY HELD BY THE CITY, TOWN
43 OR COUNTY FROM THE PREVIOUS OWNER. THE CITY, TOWN OR COUNTY MAY NOT
44 RELEASE OR RETURN THE PREVIOUS OWNER'S FINANCIAL ASSURANCE UNTIL THE
45 SUCCESSOR OWNER HAS FULLY REPLACED THE ASSURANCE VALUE. ON COMPLETION OF
46 THIS REPLACEMENT, THE SUCCESSOR OWNER SHALL ASSUME THE DECOMMISSIONING
47 SCHEDULE OF THE TRANSFEROR.]

1 30-1106. Liability insurance required

2 A. A SOLAR ENERGY POWER PLANT OWNER OR OPERATOR SHALL MAINTAIN AN
3 INSURANCE POLICY THAT INCLUDES COVERAGE[. WITH A LIMIT OF \$1,000,000 PER
4 OCCURRENCE AND \$2,000,000 IN THE AGGREGATE.] OF ANY REASONABLE LIABILITY
5 OF THE CITY, TOWN OR COUNTY WHERE THE SOLAR ENERGY POWER PLANT IS LOCATED
6 RELATED TO THE CONSTRUCTION AND OPERATION OF THE SOLAR ENERGY POWER PLANT.

7 B. A SOLAR ENERGY POWER PLANT OWNER OR OPERATOR SHALL IMMEDIATELY
8 PROVIDE WRITTEN NOTICE OF ANY CHANGE IN THE INSURANCE POLICY DESCRIBED IN
9 SUBSECTION A OF THIS SECTION TO THE CITY, TOWN OR COUNTY WHERE THE SOLAR
10 ENERGY POWER PLANT IS LOCATED.

11 30-1107. Solar energy power plant site remediation fund;
12 exemption

13 THE SOLAR ENERGY POWER PLANT SITE REMEDIATION FUND IS ESTABLISHED
14 CONSISTING OF MONIES COLLECTED PURSUANT TO SECTION 30-1105. THE EXECUTIVE
15 DIRECTOR SHALL ADMINISTER THE FUND. MONIES IN THE SOLAR ENERGY POWER
16 PLANT SITE REMEDIATION FUND ARE CONTINUOUSLY APPROPRIATED AND ARE EXEMPT
17 FROM THE PROVISION OF SECTION 35-190 RELATING TO LAPSING OF
18 APPROPRIATIONS.

19 <<Sec. 2. Applicability

20 This act applies only to an owner or operator of a solar energy
21 power plant that received all required relevant local, state and federal
22 permits after the effective date of this section.>>

23

24 Enroll and engross to conform

25 Amend title to conform

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